

Lansing
313 S. Washington Square
Lansing MI 48933

Detroit
333 W. Fort Street – Suite 1400
Detroit MI 48226

Walter S. Foster
1878-1961
Richard B. Foster
1908-1996
Theodore W. Swift
1928-2000
John L. Collins
1926-2001

Webb A. Smith
Scott A. Storey
Charles A. Janssen
Charles E. Barbieri
Scott L. Mandel
Michael D. Sanders
Brent A. Titus

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Lawrence Korolewicz
James B. Doezenia
Anne M. Seurynck
Michael D. Homier
Scott H. Hogan
Richard C. Kraus

Southfield
28411 Northwestern Highway – Suite 500
Southfield MI 48034

Holland
151 Central Avenue – Suite 260
Holland MI 49423

Benjamin J. Price
Michael R. Blum
Jonathan J. David
Andrew C. Vredenburg
Julie I. Fershtman
Todd W. Hoppe
Jennifer B. Van Regenmorter
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Taylor A. Gast
Rachel G. Olney
Tyler J. Olney
Mark J. DeLuca
Thomas K. Dillon
Robert A. Hamor
Michael A. Cassar

Grand Rapids
1700 E. Beltline NE – Suite 200
Grand Rapids MI 49525

St. Joseph
800 Ship Street – Suite 105
St. Joseph MI 49085

Hilary J. McDaniel Stafford
Emily R. Wisniewski
Amanda J. Dernovshek
Lydia H. Kessler
Brandon M. H. Schumacher
Alexander J. Thibodeau
Cody A. Mott
Alicia M. Nelson
Caroline N. Renner
Joseph B. Gale
Sydney T. Steele
Kaitlyn E. Manley
Kathrine A. Ruttkofsky
Anthony M. Dalimonte
Jim W. Scales
Benjamin C. Dilley

Writer's Direct Phone: 517.371.8155

Fax: 517.367.7155

Reply To: Lansing

Email: CBarbieri@fosterswift.com

May 2, 2022

Electronic Mail

Clare Lowe
Michigan Department of Environment, Great Lakes and Energy
Water Resources Division
2100 W. M-32
Gaylord, MI 49735

Dear Madam:

Re: City of Cadillac NPDES Permit No. MI0020257

At the request of the City of Cadillac ("City"), I am following up with a formal request for an extension to respond to the matters outlined in your letter of November 4, 2021. You will recall that additional time was requested in our previous letter of October 25, 2021, to allow the City to retain a consultant and review the matters that you have raised about the City's industrial pretreatment program. The retention of the consultant was delayed in part by City bidding requirements.

In any event, Jeff Dietlin, the Utilities Director for the City, provided you with an update on matters underway in his communication of April 28, 2022. We also understand that Fleis and Vandenbrink, the City's newly retained consultant, has been in communication with you on matters related to the industrial permit program and the matters raised in your past communications. In discussing the matter with Mr. Dietlin, we believe that an additional extension for a period of three months is appropriate under the circumstances.

Again, this request and the City's response are being made in a spirit of cooperation, without prejudice to its right and defenses. We thank you for your review, if you would like to discuss, please do not hesitate to contact this office.

FOSTER SWIFT

FOSTER SWIFT COLLINS & SMITH PC || ATTORNEYS

Clare Lowe
May 2, 2022
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Very truly yours,

FOSTER SWIFT COLLINS & SMITH PC



Charles E. Barbieri

CEB:LDH

cc: Donal Brady
Jeff Dietlin
Mike Homier

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